

25STCV07029 25STCV07029

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV07029 Hearing Date: August 12, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

12, 2026

CASE NAME: Dane

Wheaton, LLC v. Paul Morris, et al.

CASE NO.: 25STCV07029

MOTION

TO CHARGE JUDGMENT DEBTORS' INTERESTS WITH THE JUDGMENT AND TO FORECLOSE ON SUCH INTERESTS

MOVING PARTY: Plaintiff/Judgment

Creditor Dane Wheaton, LLC

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order charging the interests of Judgment Debtors in the following companies:

Forward Helms, LLC; Forward Keith, LLC; Forward Group Holdings, LLC; Forward Capital Holdings, LLC; Forward Management, LLC; Greentree Rd. Associates, LP;

Alderson-Forward Properties, LLC; and Forward-Brentwood Properties, LLC
(collectively the Limited Entities);

2. An

order directing the Limited Entities to pay any and all money or property due
or to become due to Judgment Debtors to Plaintiff/Judgment Creditor until the
Judgment, plus all accrued interest thereon, is paid in full; and

3. An

order granting Plaintiff/Judgment Creditor permission to immediately foreclose
on such charging order to satisfy the Judgment in this action.

TENTATIVE RULING:

1. Motion

for charging order is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 12, 2025, Plaintiff Dane Wheaton, LLC (Plaintiff)
filed a complaint against Defendants Paul Morris (Morris) and Edwards Krifcher
(Krifcher) (sometimes collectively Defendants) with causes of action for: (1)
guaranty [Morris]; and (2) guaranty [Krisfcher].

According to the complaint, Plaintiff and non-party Forward
Studio City, Inc. entered a lease of commercial real property located at 4061
Laurel Canyon Blvd., Studio City, California 91604. Plaintiff alleges that
Defendants separately executed personal guaranties pertaining to the lease.
They allege that Forward Studio City, Inc. subsequently breached the lease, and
Defendants breached their guaranties by failing to pay amounts due under the
lease.

On October 30, 2025, default was entered against Defendants.

On December 3, 2025, default judgment was entered against
Defendants in the amount of \$292,095.58, with \$437.25 in costs, and \$4,810.95
in attorneys' fees.

LEGAL STANDARD:

If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code.

(Code Civ. Proc. (CCP) § 708.310.)

“[A] court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment.” (Corps. Code § 17705.03 [application to limited liability companies].) “Upon a showing that distributions under a charging order will not pay the judgment debt within a reasonable time, foreclose the lien and order the sale of the transferable interest.” (Id. at subd. (b)(3).)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Plaintiff/Judgment Creditor's request for judicial notice of Exhibits 2-9 to show the Limited Entities' registered agent for service of process. (Evid. Code § 452(c), (h); See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.) However, the court only takes judicial notice of the foregoing documents only as to “the existence, content and authenticity of public records and other specified documents”; it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

Charging Order

Plaintiff/Judgment Creditor contends a charging order is appropriate because Defendants/Judgment Debtors have membership/partnership interests in the Limited Entities who are not also named as Judgment Debtors. They add that foreclosure of these interests is necessary because the small amounts of distributions (if any) from the Limited Entities will never satisfy the judgment, let alone within a reasonable amount of time.

The court has received no oppositions.

Here, relief is warranted. First, Plaintiff/Judgment Creditor established a judgment against Defendants/Judgment Debtors. (Declaration of Norman H. Levine ¶ 2.) Second, although their evidence concerning the Limited Entities is solely based on a brief declaration of counsel (Declaration of Nicolette R. Kumar ¶¶ 2-3) without an accompanying transcript of Morris' debtor's examination, the showing satisfies their burden.

Accordingly, the court GRANTS the motion for charging order without prejudice.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for charging order is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 12, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court